

FW: CPCB - Use of TCS IP in Bid Response - Requesting a confirmation

Vikrant Gupta <gupta.vikrant2@tcs.com >

Thu, 19 Jun 2025 12:07:08 PM +0530

To "Archit Uprit"<archituprit.cpcb@nic.in>,"archituprit.cpcb@gov.in"
<archituprit.cpcb@gov.in>

Cc "Bijayananda Panda"<b.panda@tcs.com>

TCS Confidential

fyip

Best Regards

Vikrant Gupta

Business Development Manager
Public Services India
Tata Consultancy Services Limited

Mobile : +91-9558818835

Mailto: gupta.vikrant2@tcs.com

Website: <http://www.tcs.com>



From: Bijayananda Panda <b.panda@tcs.com>

Sent: Wednesday, June 18, 2025 3:06 PM

To: archituprit.cpcb@gov.in

Cc: Vikrant Gupta <gupta.vikrant2@tcs.com>; Sushil Jain <sushil.jain@tcs.com>

Subject: CPCB - Use of TCS IP in Bid Response - Requesting a confirmation

Importance: High

TCS Confidential

Dear Sir,

I am reaching out to you for your urgent guidance on a critical aspect of our bid response.
We will be 100% ready by the submission date and our preparation is at a very advanced state.

As a process of final approval and validation of the bid for submission, our corporate has asked for a confirmation from CPCB that we can use our Framework solution i.e DigiGOV where TCS will retain the IP of the ?Foundation/Core?.

Request you to kindly go through the below pointers to help you understand the context and our position.

Our interpretation on the current IPR clause is that the MSP must provide a solution to CPCB that complies to the overall guidelines of the solution to be built on the Open Standards. For this project of significant importance, TCS wishes to leverage its proven DigiGOV framework solution which has 100+ installation base in Central Government, State Govt, PSUs and International Government Agencies across two decades of its journey. It is based on Open-Source technologies and fully compliant to Open standards.

We understand that Government's requirements are unique in nature, and to cater to this uniqueness, DigiGOV has been especially envisioned and designed to digitally transform and implement dynamic government policies and processes, through built in accelerators which are domain agnostic in nature namely Document Management, Workflow Management, Access Control, Reporting and Analytics, Integration framework etc. ? all in ONE BOX. This framework solution not only acts as a rapid accelerator but also brings contextual knowledge in terms of ? Low-code? approach, standardized development, proven stability and security, robustness, built upon best practices acquired over the decades and provides immense flexibility for seamless integration with other Govt departments.

DigiGOV's prowess can be understood from the fact that through this platform, Government subsidy disbursement of more than INR 60,000 Crores per annum happens in a tightly integrated banking ecosystem. In the Regulatory domain, DigiGOV is also the enabler towards the end-to-end transformation? eGCA for Directorate General of Civil Aviation and Trade connect system of Directorate General of Foreign Trade of the nation. DigiGOV has been leveraged as a Foundational Accelerator by both DGCA and DGFT in their end-to-end transformation journey. While the systems in these 2 Regulatory domains are vastly different, what is common across them in the foundational domain agnostic accelerator ? i.e. TCS DigiGOV. DigiGOV is also the foundational accelerator for the Defense Pension One Rank One Pension System catering to 3.1M defense pensions across the nation.

DigiGOV follows all the standard design and implementation principles as outlined below in conformity to the RFP, thereby minimizes the any perceived lock-in possibilities. We assure you that DigiGOV framework solution will provide similar strategic control to CPCB for which the RFP was envisioned.

1. It utilizes Open-Standards and Libraries that will address any compatibility issue with the future system (after exit) and eases the concern of "difficult to switch".
2. DigiGOV's use of standardized APIs and Tools are compatible with multiple cloud providers which can simplify the management of the system and enhance the portability aspect.
3. Development of Integrations/Interfaces follows the industry standard, hence are interoperable with the new vendors after the exit.
4. DigiGOV stores data in a non-proprietary format. This will ensure easy portability to another platform. Use of DigiGOV will not restrict the data ownership and usage rights of CPCB. Data Migration will also not be an issue as DigiGOV uses a proven and structured data migration strategy with NEUTRAL data format.
5. The proposed solution is designed in such a way that it remains Cloud agnostic. The new MSP can port the components to other CSPs at ease.
6. Modular Design & Microservices based architecture is the fundamental architectural design principle of DigiGOV. It is built with modular components with each business process implemented & integrated as services which can be seamlessly decoupled and swapped out, if necessary, in future.
7. DigiGOV security stack is platform agnostic and complies to Security and Cert-In guidelines of GoI. Data Privacy aspect is already in-built in the framework and conforms to DPDP guidelines of handling PII and SPII data.
8. Transition and handover of the CPCB application after the contract period will follow a clearly defined EXIT PLAN/Exit Strategy and it would include manageable transition assistance. Exit will also include handing over the CPCB specific Source Code, Software Executables, Libraries, Integrations and others as per the agreed plan.

As done in all other Government implementations, TCS will only retain the IP of the thin layer of ?DigiGOV Foundation? which is primarily a framework accelerator. The entire CPCB requirement will be built on top of this accelerator layer as per CPCB's unique process requirement. CPCB will retain all the IPR for the specific code developed for its processes, libraries, reports, dashboards, and objects. Through this submission, we are also conforming that even after ?Exit?, CPCB can continue with the project and carry out further developments and enhancements to the system without any hinderance.

We therefore request CPCB to confirm our understanding that we can propose DigiGOV framework solution where TCS can retain the IP of the DigiGOV base/core/foundation. This foundation/core/base IP is in use by all other Govt Departments wherever it is implemented, thus limiting 100% transfer.

In case CPCB kindly concur with TCS understanding as stated above, TCS would like CPCB to modify the current IPR Clause as suggested below during the actual contract signing stage in case TCS is awarded the contract. Requesting a confirmation on this.

We again assure you that we are extremely keen to participate and leverage our accumulated expertise for the betterment of CPCB for this project of national importance.

Current IPR Clause

23.1 Products and fixes: All products and related solutions and fixes provided pursuant to this work order shall be licensed according to the terms of the license agreement packaged with or otherwise applicable to such product. ?Product? means any computer code, web-based services, or materials comprising commercially released, pre-release or beta products (whether licensed for a fee or no charge) and any derivatives of the foregoing which are made available to CPCB, or any agency appointed by CPCB for license which is published by product owner or its affiliates, or a third party. ?Fixes? means product fixes that are either released generally (such as commercial product service packs) or that are provided to CPCB when performing services (such as workarounds, patches, bug fixes, beta fixes and beta builds) and any derivatives of the foregoing.

23.2 Design and Development: The IPR rights for every Design and Development done during the integration, development and O&M phase of this project will lie with CPCB or any agency appointed by CPCB.

23.3 Residuals: In no event shall (SI)/vendor be precluded from independently developing for itself, or for others, anything, whether in tangible or non-tangible form, which is competitive with, or similar to, the deliverables set out in this Agreement or Annexure. In addition, subject to the confidentiality obligations, (SI)/vendor shall be free to use its general knowledge, skills and experience, and any ideas, concepts, know-how, and techniques that are acquired or used in the course of providing the services.

New Proposed IPR Clause (which can be negotiated during the contract finalization after Win):

23.1 Products and fixes: All products and related solutions and fixes provided pursuant to this work order shall be licensed according to the terms of the license agreement packaged with or otherwise applicable to such product. ?Product? means any computer code, web-based services, or materials comprising commercially released, pre-release or beta products (whether licensed for a fee or no charge) and any derivatives of the foregoing which are made available to CPCB, or any agency appointed by CPCB for license which is published by product owner or its affiliates, or a third party. ?Fixes? means product fixes that are either released generally (such as commercial product service packs) or that are provided to CPCB when performing services (such as workarounds, patches, bug fixes, beta fixes and beta builds) and any derivatives of the foregoing.

23.1.A Pre-existing work: All IPR including the source code and materials developed or otherwise obtained independently of the efforts of a Party under this Agreement (?pre-existing work?) including any enhancement, customization or modification thereto shall remain the sole property of that Party. During the performance of the services for this agreement, each party grants to the other party (and their sub-contractors as necessary) a non-exclusive license to use, reproduce and modify any of its pre-existing work provided to the other party solely for the performance of such services for duration of the Term of this Agreement. Except as may be otherwise explicitly agreed to in a statement of services, upon payment in full, the Implementation Agency should grant purchaser a non-exclusive, perpetual, fully paid-up license to use the pre-existing work in the form delivered to purchaser as part of the service or deliverables only for its internal business operations. Under such license, either of parties will have no right to sell the pre-existing work of the other party to a Third Party. Purchaser's license to pre-existing work is conditioned upon its compliance with the terms of this Agreement and the perpetual license applies solely to the pre-existing work that bidder leaves with purchaser at the conclusion of performance of the services.

23.2 Design and Development: Subject to 23.1;23.1.A, the IPR rights for every Design and Development done during the integration, development and O&M phase of this project will lie with CPCB or any agency appointed by CPCB.

23.3Residuals: In no event shall (SI)/vendor be precluded from independently developing for itself, or for others, anything, whether in tangible or non-tangible form, which is competitive with, or similar to, the deliverables set out in this Agreement or Annexure. In addition, subject to the confidentiality obligations, (SI)/vendor shall be free to use its general knowledge, skills and experience, and any ideas, concepts, know-how, and techniques that are acquired or used in the course of providing the services.

Thanks and Regards

Bijay Panda | Sales Head - Central Govt Business | Public Services India | **TATA** Consultancy Services | Email - b.panda@tcs.com | M:+91 98218 46950

=====

Notice: The information contained in this e-mail message and/or attachments to it may contain confidential or privileged information. If you are not the intended recipient, any dissemination, use, review, distribution, printing or copying of the information contained in this e-mail message and/or attachments to it are strictly prohibited. If you have received this communication in error, please notify us by reply e-mail or telephone and immediately and permanently delete the message and any attachments. Thank you